No. C095798

IN THE COURT OF APPEAL OF THE STATE OF CALIFORNIA

THIRD APPELLATE DISTRICT

TERESA BROWN,
Respondent,

v.

CALIFORNIA DEPARTMENT OF CORRECTIONS AND REHABILITATION,
Appellant.

Appeal from Sacramento County Superior Court
Steven Gevercer, Judge – Case No. 34-2015-00176321

RESPONDENT'S BRIEF

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CERTIFICATE OF INTERESTED ENTITIES OR PERSONS

Case Name: *Teresa Brown v. California Department of Corrections and Rehabilitation*
Court of Appeal No. C095798

(Check One) ☒ Initial Certificate ☐ Supplemental Certificate

☒ There are no interested entities or persons to list in this Certificate per California Rules of Court, rule 8.208(d).

The undersigned certifies that the above listed persons or entities (corporations, partnerships, firms or any other association, but not including government entities or their agencies), have either (i) an ownership interest of 10 percent or more in the party if an entity; or (ii) a financial or other interest in the outcome of the proceeding that the justices should consider in determining whether to disqualify themselves, as defined in rule 8.208(e)(2).

Date: March 21, 2024

s/ James A. Sonne
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INTRODUCTION

This appeal challenges a judgment that followed a prior reversal and remand by this Court, with the trial judge having twice reviewed the evidence and arguments. In the end, and for reasons stated from the bench with no statement of decision, the judge found that the California Department of Corrections and Rehabilitation (CDCR) violated the Fair Employment and Housing Act (FEHA) in rejecting Teresa Brown's application to be a correctional officer based on her need to observe the Sabbath. This Court should affirm and put this decade-long dispute to an end for two independent reasons: (1) CDCR omits on appeal a transcript of the trial court's oral ruling; and (2) the judgment is supported by implied findings and substantial evidence.

Teresa Brown is a mother of three and devout Seventh-day Adventist. Like adherents of other faiths across the State of California, Brown observes a Sabbath during which she must abstain from work. For Adventists, this sacred time is sundown Friday to sundown Saturday.

Seeking to provide for her family in a job where she could excel and serve, Brown applied to be a correctional officer for CDCR. As one of our state's largest employers, CDCR runs 34 prisons of varying security levels, has an annual budget exceeding ten billion dollars, and employs tens of thousands of correctional officers in myriad assignments and schedules.

Brown aced the initial series of physical and intellectual tests. But CDCR nonetheless rejected her application at the pre-employment backgrounds stage because of the conflict between her Sabbath and a stated 24/7/365 availability policy.

Sadly, this tale is not new. Indeed, it was a situation so concerning to our legislature that Sabbath observance is covered by name in FEHA's famously robust protections for employee religious practice in Government Code section

12940, subdivision (l)(1). Thus, even when an applicant's Sabbath conflicts with a job requirement, the employer cannot reject her unless it proves with nonspeculative, particularized evidence that it explored every option to resolve the conflict but all such resolutions would cause undue hardship of "significant difficulty or expense."

Seeking this protection, Brown sued. After a two-week bench trial and a judgment in CDCR's favor, this Court reversed. On remand, the trial court reviewed the evidence a second time after another round of briefing. It then held a hearing and ruled for Brown for reasons stated from the bench. In a follow-on remedies order and the judgment, the court awarded damages and ordered Brown be reinstated in the application process.

CDCR now brings this second appeal. It raises two issues. First, CDCR argues that the trial court's remedies order misconstrues this Court's prior remand as a mandate not to treat as a per se undue hardship Brown's inability to meet CDCR's availability requirements. Second, CDCR says no substantial evidence supports the trial court's decision in favor of Brown under Section 12940, subdivision (l)(1).

As described below, however, CDCR's appeal must be dismissed because, of the thousands of record pages it designated, the agency omits the heart of the matter: the trial court's decision on the merits. Without a transcript of the hearing where that decision was rendered, both this Court and Brown are deprived a full and fair opportunity to address it.

Alternately, CDCR's challenge to the remedies order must be rejected because the absence of a statement of decision triggers the doctrine of implied findings—precluding any such challenge. Regardless, the trial court committed no error where it rightly noted that CDCR had to prove undue hardship no matter the nature of Brown's beliefs or the job requirement.

Furthermore, substantial evidence supports a finding that CDCR failed to prove undue hardship. CDCR never tried an accommodation. Nor did it consult any warden or the union, much less produce evidence on the reporting needs of most facilities. What's more, Brown was willing to work any other day or hour, and at nearly any facility. The labor contract affords CDCR broad discretion on weekly schedules and permits other ad hoc accommodation options.

This Court should affirm the judgment and allow Teresa Brown to finally resume her effort to serve our state as a correctional officer in a manner consistent with her faith.

STATEMENT OF THE CASE

A. Teresa Brown observes a religious Sabbath.

Teresa Brown is an observant Seventh-day Adventist. Accordingly, she abstains from work on a Sabbath that runs from sundown Friday to sundown Saturday. (Trial Exhibit ("Exh.") 7; 2 RT 129:19-27.)

Brown spends the Sabbath at church, teaching her children the faith, and serving people in need. Consistent with her beliefs, however, Brown would also work on her Sabbath if anyone were injured or anyone's life were at stake. (2 RT 147:28-149:20.)

B. Brown applies to be a correctional officer at CDCR.

Brown applied to be a correctional officer in 2013. At that time, she was already working for CDCR as a certified nursing assistant, a position in which her Sabbath was known and accommodated. On the first form in the application process, Brown accordingly answered "yes" when asked if "your religious beliefs prevent you from taking an exam on Saturday." (Exh. 2; 2 RT 141:9-141:21.)

Following this answer, CDCR allowed Brown to continue in a months-long review process through its Backgrounds Unit. First, CDCR had Brown take a four-hour problem-solving exam, which she passed. Next, CDCR sent Brown for a physical-fitness test, which it arranged for her to take on a weekday to accommodate her faith. (2 RT 141:25-145:13, 4 RT 599:19-601:28, 5 RT 792:14-793:5; Exhs. 11, 26.)

Brown again passed, drawing praise that she was "faster than some of the boys." (2 RT 144:16-17.)

CDCR then required a "Qualification Assessment Report" (QAR) form. The QAR included yes/no question boxes asking Brown's "willingness to work" overtime, on-call hours, rotating shifts, off-site travel, and "weekend shifts (e.g., Saturday, Sunday, and/or Holidays) in emergency situations, on an as-needed basis, and/or on a regular rotating basis." (Exh. 4.) As Brown explained at trial, she checked "yes" because these times include non-Sabbath hours or emergency situations with injuries or lives at stake. (2 RT 145:18-151:5.)

CDCR next had Brown complete a "Personal History Statement," which asked another series of questions. Unlike the QAR, this form offered space to clarify. (2 RT 152:27-153:9; Exh. 3.) Able to explain her entries, Brown marked "no" when asked if she was "freely willing to work split shifts, nights, weekends and holidays." (Exh. 3; 2 RT 153:10-154:6.) She then wrote in the space provided, "I am a Seventh Day Adventist[.] I cannot work Friday after Sunset or Saturday before Sunset. I have a letter for my belief available upon request." (Exh. 3.)

Background Unit Sergeant Shannon Beaber thereafter interviewed Brown. Beaber had no experience with religious accommodations. After covering other topics, Beaber asked Brown about the Sabbath. (2 RT 153:4-5, 154:23-155:13; 2 CT 431-35; Exhs. 236, 236A.)

Brown repeated she cannot work sundown Friday to sundown Saturday but would work "any hours besides those hours." (2 RT 155:5-156:7; 2 CT 432-33; Exhs. 236, 236A.)

Beaber remarked to Brown that the correctional-officer job is "a 24/7" position and she "could be working these odd hours." (2 CT 433; Exhs. 236, 236A.) But at no point during or after the interview did Beaber—or anyone else—discuss with Brown mandatory overtime or emergency reporting on the Sabbath. (2 RT 150:2-4, 262:25-264:16; Exhs. 236, 236A.)

In any event, Brown stressed to Beaber she was willing to work any other hour or day of the year, including hours on Friday and Saturday that did not fall within her Sabbath. (2 RT 155:5-156:7; 2 CT 433; Exhs. 236, 236A.) Brown also testified she would work on the Sabbath if anyone were hurt or anyone's life were at stake, in accordance with her faith. (2 RT 147:28-149:26.)[1]

Moreover, Brown was willing to work any correctional-officer role and, except for a few remote spots, "anywhere [CDCR] sent [her]" among its dozens of facilities. (2 RT 151:15-26, 202:16-27, 259:7-22; 5 RT 714:22-715:2; 5 CT 1213-14; Exhs. 4, 236, 236A.) Furthermore, Brown is married to a non-Sabbatarian officer with seniority who would swap shifts—or even transfer facilities—to resolve any potential Sabbath conflict. (6 RT 1058:11-14, 1077:1-19, 1095:25-27.)

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[1] CDCR read from Brown's deposition that when Beaber noted the possibility of staying into the Sabbath, Brown said she could not. (2 RT 202:1-7, 204:26-205:5.) But Beaber did not mention emergencies or mandatory overtime in the interview, nor did she try to clarify Brown's beliefs on that score. And Brown clarified at trial that, as a matter of her faith, "if an inmate or officers' lives were at stake, I certainly would stay. Or if a riot was going on, I wouldn't walk out, or I wouldn't not go in." (2 RT 147:28-149:20; see also 2 RT 148:16-20 [adding she would report if there were injuries].)

Finally, Beaber closed the subject by requesting a pastor letter that Brown said explained her Sabbath observance, which Brown thereafter provided. (2 CT 434; Exhs. 7, 236, 236A.) Beaber never spoke to Brown again. (4 RT 579:16-18.)

ARGUMENT

I. FEHA protects Sabbath observers in the workplace and sets a high, fact-intensive standard for employers to justify their refusal to accommodate the practice.

A. Sabbath observers establish a prima facie case under Section 12940(l)(1) by showing a conflict between that practice and any job requirement.

Government Code section 12940, subdivision (l)(1) forbids employers from rejecting a job applicant because of a conflict between her "observance of a Sabbath" and "any employment requirement," unless the employer can prove that it "explored any available reasonable alternative means of accommodating [that observance] . . . but is unable to reasonably accommodate the religious belief or observance without undue hardship."

Accordingly, courts follow a two-part burden-shifting framework. First, the plaintiff must establish a prima facie case that: (1) she held a sincere religious belief; (2) the employer knew of that belief; and (3) the belief conflicted with any job requirement. (*Cal. Fair Employment & Housing Com. v. Gemini Aluminum Corp.* (2004) 122 Cal.App.4th 1004, 1011 (*Gemini*).) Once the plaintiff establishes a prima facie case, the burden shifts to the employer to prove it tried to accommodate the plaintiff but could not do so absent undue hardship. (*Ibid.*)

Notably, an employer cannot evade the burden-shifting of subdivision (l)(1) by invoking concepts outside that provision, such as the job-qualification prerequisite for disparate-treatment claims under subdivision (a) or the "essential duties" criterion for disability claims under (a)(1). (Compare *Slatkin v.*

U. of Redlands (2001) 88 Cal.App.4th 1147, 1158 [including job-qualification condition for disparate-treatment claim], with *Soldinger v. Northwest Airlines, Inc.* (1996) 51 Cal.App.4th 345, 370 (*Soldinger*) [omitting it for religious accommodation].)

In its brief, CDCR argues 24/7/365 availability is a "minimum qualification[]" and "essential function," and it is "not obligated [to] accommodate an unqualified applicant" or "waive an essential function." But neither term is part of the religious-accommodation analysis. Instead, FEHA requires CDCR to prove it explored accommodation to the point of undue hardship for "any employment requirement." (Gov. Code, § 12940, subd. (l)(1).) FEHA cannot be read "to omit expressed language or include omitted language." (*In re Dakota H.* (2005) 132 Cal.App.4th 212, 225-26, citation omitted.)

B. After a prima facie case, the employer must prove it explored any available reasonable means to accommodate.

After the plaintiff makes out a prima facie case, the burden shifts to the employer to first prove "it has explored any available reasonable alternative means of accommodating the [plaintiff's] religious belief or observance." (Gov. Code, § 12940, subd. (l)(1).)

Notably, the onus to initiate this exploration falls on the employer. (*Soldinger*, *supra*, 51 Cal.App.4th at p. 370; see also EEOC, Compliance Manual on Religious Discrimination (July 22, 2008) ["[T]he employer should obtain promptly whatever additional information is needed to determine whether an accommodation is available that would eliminate the religious conflict without posing an undue hardship"].) In fact, the employee has no duty even to negotiate until "after the employer has suggested a possible

accommodation." (*Heller v. EBB Auto Co.* (9th Cir. 1993) 8 F.3d 1433, 1440.)[2]

As for what counts as an "available reasonable alternative means of accommodating," the question is not how onerous to the employer the option might be—that's undue hardship. Rather, the "reasonable" prong concerns only whether the option "eliminates the conflict between the religious practice and the job requirement." (Cal. Code Regs., tit. 2, § 11062, subd. (a); CACI No. 2560; see also *Opuku-Boateng v. State of Cal.* (9th Cir. 1996) 95 F.3d 1461, 1467 [describing reasonable accommodation as one that "eliminate[s] the religious conflict"].)

Yet, FEHA illustrates what "reasonable alternative means" consists of in practice: it requires an employer to consider "excusing the person from those duties that conflict with the person's religious belief or observance or permitting those duties to be performed at another time or by another person." (Gov. Code, § 12940, subd. (l)(1).) Similarly, FEHA's regulations urge that accommodation can include "job restructuring, job reassignment, modification of work practices, or allowing time off in an amount equal to the amount of non-regularly scheduled time the employee has worked in order to avoid a conflict with his or her religious observances." (Cal. Code Regs., tit. 2, § 11062, subd. (a).)

Fundamentally, by protecting "observance of a Sabbath," FEHA presumes the propriety of affording time off for it. (Gov. Code, § 12940, subd. (l)(1).)

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[2] California courts look to authority under Title VII of the Civil Rights Act that involves analogous FEHA provisions. (*Cook v. Lindsay Olive Growers* (9th Cir. 1990) 911 F.2d 233, 241.)

II. If the employer fails to explore all available options, it must prove no accommodation is possible absent undue hardship.

Where an employer fails to show it explored available alternatives, it can prevail only if it proves that "any reasonable accommodation would have caused it an undue hardship." (*Soldinger*, *supra*, 51 Cal.App.4th at p. 373.)

To prove such hardship, an employer must meet a series of requirements that is strict and factually demanding in several respects: (1) the high degree of hardship required for it to be undue; (2) the range of considerations in assessing an undue-hardship showing; (3) the need for concrete and particularized evidence of undue hardship; and (4) that any hardship showing that meets the preceding factors be met for all options. What's more, navigating this litany is (5) all the more difficult in the pre-hire context where no accommodation has been tried.

First, the employer must prove hardship rising to "significant difficulty or expense." (Gov. Code, § 12940, subd. (l)(1); § 12926, subd. (u).) Notably, although disability and religious-accommodation claims differ in other respects, FEHA uses the same strict undue-hardship standard for both.

Second, "significant difficulty or expense" is evaluated across five factors, summarized as follows: (1) the nature and cost of the accommodation; (2) the financial and human resources of the facilities involved; (3) the overall financial resources of the employer, as well as the size of its business, facilities, and workforce; (4) the type of operations; and (5) the geographic relationship of facilities. (Gov. Code, § 12926, subd. (u).)

Third, the employer's burden to prove "significant difficulty or expense" across the five factors must be particularized to the plaintiff in question. (See *Balint v. Carson City* (9th Cir. 1999) 180 F.3d 1047, 1054 [emphasizing "undue hardship must be determined within the particular factual context of each"].)

CONCLUSION

CDCR failed to include the trial court's decision in the record, and the judgment is otherwise supported by implied findings and substantial evidence. This Court should affirm.

Date: March 21, 2024

Respectfully submitted,
STANFORD LAW SCHOOL
RELIGIOUS LIBERTY CLINIC

By:

_____

James A. Sonne
Attorneys for Respondent
Teresa Brown

CERTIFICATE OF COMPLIANCE

The foregoing Respondent's Brief complies with the type-volume limitation of California Rules of Court, rule 8.204(c)(1) because it contains 2,560 words, excluding the parts of the brief exempted by rule 8.204(c)(3), and was prepared in 13-point EB Garamond, a proportionally spaced typeface, using a word-processing program. The electronic brief was subject to a virus scan and no virus was detected prior to its submission.

Dated: March 21, 2024

James A. Sonne
Attorneys for Respondent
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CERTIFICATE OF SERVICE

At the time of service, I was over 18 years of age and not a party to this action. I am employed in the County of Santa Clara, State of California. My business address is 559 Nathan Abbott Way, Stanford, CA 94305-8610.

On the date set forth below, I served one true copy of the following document(s) described as Respondent's Brief on the interested parties in this action as follows:

BY FIRST-CLASS UNITED STATES MAIL: Pursuant to CRC R. 8.212(c)(1), a true and correct copy of the foregoing was mailed to the superior court clerk in this case, addressed as follows:

BY ELECTRONIC FILING / SERVICE: Based on a court order or an agreement of the parties to accept service by e-mail or electronic transmission via Court's Electronic Filing System (EFS) operated by ImageSoft TrueFiling (TrueFiling) as indicated on the attached service list.

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I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on March 21, 2024 at Stanford, California.

Joanne Newman